Regulatory summary — legal warranty and commercial warranty

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Document fictif — NovaShop est une société imaginaire créée pour le projet pédagogique SupportAI.

Internal summary document. Not legal advice.

1. Two distinct regimes

Criterion	Legal warranty	Commercial warranty
Origin	Law (consumer protection)	Seller or manufacturer
Duration	Set by law	Set by the seller (6 to 12 months at NovaShop)
Scope	Defect of conformity, hidden defect	Manufacturing defect under the contract terms
Cost	Free for the consumer	Free during the covered period
Waiver	Not possible	Possible, but does not remove the legal warranty

A commercial warranty clause cannot reduce the rights arising from the legal warranty.

2. What the legal warranty covers

The legal warranty concerns the conformity of the goods with the contract: description, quality, quantity, announced features, suitability for the expected use. It covers defects existing at the time of delivery, even if they appear later.

Practical consequences for support:

- a defect reported after the commercial warranty period must still be examined under the legal warranty;
- a refusal must be reasoned and written;
- the customer cannot be referred solely to the manufacturer.

3. What the NovaShop commercial warranty covers

See POL-04: 12 months for most categories, 6 months for accessories, 3 months for cables and batteries. The exclusions (fall, liquid, non-approved repair) apply only to the commercial warranty.

4. Points of attention

1. The exact duration of the legal warranty and how it is calculated must be confirmed against the official text.
2. The burden of proof of the defect may vary with the age of the product; do not invoke it without legal validation.
3. Warranty exclusions must be brought to the customer's attention before purchase.
4. A repair outside the approved network cannot cause the loss of the legal warranty.

5. Wording permitted for the assistant

- "This defect falls under the 12-month commercial warranty."

- "Even outside the commercial warranty, your request will be examined under the legal warranty of conformity."
- "For this accidental damage, the warranty does not apply, but a paid repair is possible on quotation."

6. Prohibited wording

- "Your warranty has expired, you have no remedy."
- "The law requires 12 months of warranty."
- "The legal warranty does not apply to this product."

7. Associated procedure

PRO-03 describes the repair request journey. POL-09 covers products found faulty on receipt.

8. Monitoring

To be validated before any customer distribution.